

GZ: 2024-0.195.679 dated February 11, 2025 (Case Number: DSB-D213.2544)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides in the context of the data protection review pursuant to Art. 58 para. 1 lit. b GDPR against Dieter A*** (Controller of the website https://www.a***-photo.com/****/f***/), I***straße **3, **** P***, as follows:

1. The Controller violates the GDPR by taking and publishing photos of children and religious beliefs within the meaning of Art. 9 para. 1 GDPR on his website https://www.a***-photo.com/****/f**. The Controller is ordered pursuant to Art. 58 para. 2 lit. g GDPR to delete the photos in accordance with points C.2. and C.3. of the factual findings of this decision within a period of two weeks, otherwise enforcement will occur.
2. The Controller violates the GDPR by taking and publishing a photo that is taken from above, such that a large part of the frame or part of the chest of the affected women as well as the outline of their bras are visible, on his website https://www.a***-photo.com/****/f**. The Controller is ordered pursuant to Art. 58 para. 2 lit. g GDPR to delete the photo "P*** 2017" (C.4. of the factual findings) within a period of two weeks, otherwise enforcement will occur.
3. The Controller violates the GDPR by taking and publishing a photo that shows individuals while they are eating on his website https://www.a***-photo.com/****/f**. The Controller is ordered pursuant to Art. 58 para. 2 lit. g GDPR to delete the photo described in C.5 within a period of two weeks, otherwise enforcement will occur.

Legal bases: Art. 8 and Art. 13 of the Charter of Fundamental Rights of the EU (EU-CFR), OJ No. C 202 of June 7, 2016, p. 389; Art. 4, Art. 5 para. 1 lit. a and c, Art. 6 para. 1 lit. a and lit. f, Art. 7, Art. 8, Art. 51 para. 1, Art. 57 para. 1 lit. a and lit. h, Art. 58 para. 1, para. 2 lit. d and lit. g, Art. 77 para. 1, and Art. 85 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 9 para. 2, 18 para. 1 of the Data Protection Act – DSG, Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The Data Protection Authority was informed of an anonymous report that images of individuals had been uploaded online on the website operated by the Controller, https://www.a***-photo.com/****/f**. It was claimed that this occurred without the consent of the affected individuals. The Data Protection Authority subsequently initiated an official review procedure pursuant to Art. 58 para. 1 lit. b GDPR regarding the tab "F****" with an initial letter dated December 20, 2023.

2. In a submission dated March 8, 2024, the legally represented Controller of the website in question summarized that he had not obtained consent from the identifiable individuals in the relevant photo (page 5 under F*** G*** 2015). The Controller primarily practices the genre of street photography and pursues artistic purposes. Consent for the creation and distribution of the photos is generally not required, as it would make the genre of street photography impossible. The data protection consent as a basis for art photography is unsuitable because such consent can be revoked by the affected person at any time.

In response to the Data Protection Authority's question about how compliance with the modalities for the rights of the affected individuals, particularly Art. 15 GDPR (Right of Access), Art. 17 GDPR (Right to Erasure), and Art. 21 GDPR (Right to Object), is ensured in accordance with Art. 12 ff GDPR, the Controller replied that he informs about the rights of the affected individuals as much as possible after the photo is taken.

In response to the Data Protection Authority's question regarding the legal basis, the Controller referred to a case-specific balancing based on § 9 para. 2 DSG.

3. In a communication dated March 11, 2024, the Data Protection Authority again requested the

Controller to indicate whether the affected individuals (particularly the legal guardians of the children) had been informed (after the fact) in accordance with Art. 13 and 14 GDPR, (in particular) that the photos would be published on the relevant website.

4. In a submission dated March 25, 2024, the Controller stated that the individuals he had depicted so far had been orally informed about the possible dissemination and the nature of the possible dissemination of the photos he had taken in public spaces whenever the opportunity arose. The occasional provision of information was partly due to the rather fleeting exceptional situation (passersby come and go) and partly due to the Controller's activities abroad in foreign languages. In the future, the Controller would provide his business card with website information to those he had photographed.

****Photographed Persons or Their Alleged Guardians****

Grant them the opportunity to access the data protection information on his website.

****B. Subject of the Proceedings****

The subject of the proceedings is the question of whether the processing of personal data in the form of image recordings on the website https://www.a***-photo.com under the link "F****" is lawful.

****C. Findings of Fact****

1. Dieter A*** operates the website https://www.a***-photo.com as the responsible party, on which he (subject to the proceedings) publishes, in particular, photos of persons he has photographed in public spaces under "F****" (https://www.a***-photo.com/****/f***/). The website in question is accessible to everyone. The responsible party has occasionally informed the photographed individuals and occasionally obtained (oral) consent. Until March 25, 2024, the responsible party did not hand over his business card with website information to the photographed individuals or their alleged guardians.

****Assessment of Evidence:**** The findings made are based on the submissions of the responsible party in the present proceedings as well as the official investigations of the data protection authority (https://www.a***-photo.com/****/f***/, last accessed February 11, 2025). The finding that the responsible party did not hand over his business card with the website information until March 25, 2024, particularly arises from the statement dated March 25, 2024, in which he claimed that he would "in the future," i.e., only in the future, provide his business card and website information and that he had only occasionally "informed orally" in the past.

2. Children: The website features images of children who were photographed by the responsible party before March 25, 2024.

2.a. P*** 2019: This photo undoubtedly also reveals the (Jewish) religious affiliation of the two depicted persons, and in particular of the depicted child, e.g., due to the hairstyle and the kippah (Jewish head covering).

[Note by the editor: The five digital images reproduced here and subsequently cannot be meaningfully pseudonymized and have therefore been removed for reasons of data protection and copyright.]

2.b. P*** 2018

[Note: as previously]

2.c. F***portrait – U*** 2018 - K***

[Note: as previously]

2.d. P*** 2018

[Note: as previously]

2.e. F***portrait - U*** 2018- K***

[Note: as previously]

****Assessment of Evidence:**** The findings made regarding C.2. are based on the submissions of the responsible party in the present proceedings as well as the official investigations of the data protection authority (https://www.a***-photo.com/****/f***/, last accessed February 11, 2025).

3. Children (see below): The responsible party did not obtain consent from the children or their guardians for the following photo, which features children. The photo was located at least until March 11, 2024, on page 5 of the website in question under "F****" and is now found on page 8 of the website in question under "F***." (Excerpt, formatting not reproduced 1:1, marked by the data protection authority)

3.a. G*** 2015:

[Note by the editor: The two digital images reproduced here cannot be meaningfully pseudonymized and have therefore been removed for reasons of data protection and copyright.]

****Assessment of Evidence:**** The findings made regarding C.3. are based in particular on the submissions of the responsible party from March 8, 2024, due to the explicit question from the data protection authority in the resolution dated December 20, 2023, regarding whether he had obtained consent for the photo "G*** 2015," as well as the official research of the data protection authority (accessed on March 11, 2024, and last accessed on February 11, 2025).

4. The responsible party published the following photo on his website. Originally, the photo was located at least until March 11, 2024, on page 3 of the website in question under "F****" and is now on page 4. The responsible party could not provide consent for the photo in question and only "occasionally" informed about its publication on the website.

P*** 2017

[Note by the editor: The two digital images reproduced here cannot be meaningfully pseudonymized and have therefore been removed for reasons of data protection and copyright.]

****Assessment of Evidence:**** The findings made regarding C.4. are based on the submissions of the responsible party in the present proceedings as well as the official investigations of the data protection authority (https://www.a***-photo.com/****/f***/, last accessed February 11, 2025).

5. The responsible party photographed and published these individuals on his website while they were eating in restaurants.

[Note by the editor: The digital photograph reproduced here cannot be meaningfully pseudonymized and has therefore been removed for reasons of data protection and copyright.]

Assessment of evidence: The findings made are based on the submissions of the responsible party in the present proceedings as well as the official investigations conducted by the data protection authority (https://www.a***-photo.com/****/f***/, last accessed February 11, 2025).

D. From a legal perspective, it follows:

1. On the relationship between data protection and artistic freedom

According to Art. 8 para. 1 EU Charter of Fundamental Rights (EU-GRC) – or according to § 1 Data Protection Act (DSG) at the constitutional level – every person has the right to the protection of personal data concerning them.

According to Art. 13 EU-GRC – or according to Art. 17a Federal Constitutional Law (StGG) at the constitutional level – art and research are free. Academic freedom is respected.

In the present data processing, the complainant invokes his primarily and constitutionally guaranteed right to artistic freedom.

According to Art. 85 para. 1 General Data Protection Regulation (GDPR), the Member States shall reconcile the right to the protection of personal data under this Regulation with the right to freedom of expression and information, including processing for journalistic purposes and for scientific, artistic, or literary purposes.

Art. 85 para. 2 GDPR stipulates that for processing carried out for journalistic purposes or for scientific, artistic, or literary purposes, the Member States may provide for deviations or exceptions from Chapter II (Principles), Chapter III (Rights of the data subject), Chapter IV (Controller and Processor), Chapter V (Transfer of personal data to third countries or international organizations), Chapter VI (Independent supervisory authorities), Chapter VII (Cooperation and consistency), and Chapter IX (Provisions for specific processing situations) if necessary to reconcile the right to the protection of personal data with the freedom of expression and the freedom to receive information.

§ 9 para. 2 DSG states that to the extent necessary to reconcile the right to the protection of personal

data with the freedom of expression and the freedom to receive information, the GDPR shall not apply to Chapter II (Principles), except for Art. 5, Chapter III (Rights of the data subject), Chapter IV (Controller and Processor), except for Arts. 28, 29, and 32, Chapter V (Transfer of personal data to third countries or international organizations), Chapter VI (Independent supervisory authorities), Chapter VII (Cooperation and consistency), and Chapter IX (Provisions for specific processing situations) for processing carried out for scientific, artistic, or literary purposes. In such cases, § 6 DSG (Data secrecy) of this Federal Act shall apply.

In the explanations to the Data Protection Adaptation Act 2018 (ErläutRV 1664, AB 1761, BlgNR 25), the legislator has specified the following (emphasis by the data protection authority):

"Regarding the applicability of data protection regulations for processing for such purposes, corresponding exceptions shall be created within the framework of the provisions of Art. 85 GDPR. However, the provisions of the GDPR on the principles for the processing of personal data (Art. 5 GDPR), on the processor (Arts. 28 and 29 GDPR), on the security of processing (Art. 32 GDPR), as well as generally those chapters of the GDPR for which Art. 85 GDPR does not provide for exceptions shall remain applicable. Substantively, this is intended to largely maintain the exceptions provided for such processing by § 48 DSG 2000.

Only § 6 (Data secrecy) of this Federal Act shall apply; the application of the constitutionally enshrined fundamental right to data protection according to § 1 remains unaffected."

The materials therefore indicate that the application of the constitutionally enshrined fundamental right to data protection according to § 1 DSG remains unaffected and that in processing according to § 9 para. 2 DSG, in particular, the principles for the processing of personal data, including the principle of data minimization of Art. 5 para. 1 lit. c GDPR, as well as the principle of lawfulness of processing in good faith, transparency of Art. 5 para. 1 lit. a GDPR shall remain applicable.

The applicability of Art. 5 GDPR in the areas of § 9 para. 2 DSG means that the principles regulated there have unrestricted validity for processing for artistic purposes (cf. Rohner in Knyrim, DatKomm Art 85 GDPR, Rz 47).

Since the GDPR recognizes exceptions in favor of artistic freedom in Art. 85 para. 2 and the freedom of art is furthermore enshrined as a fundamental right in Art. 13 EU-GRC, a balancing of interests in individual cases is necessary to reconcile the fundamental right to data protection according to Art. 8 EU-GRC (or § 1 DSG) with the fundamental right to freedom of art.

2. On the permissibility of image processing

The taking (photographing) on the one hand and the subsequent publication of the images in question on the other hand are undisputedly to be regarded as each a processing within the meaning of Art. 4 No. 2 GDPR (cf. ECJ 14.02.2019, C-345/17, Rz 37ff).

Mr. Dieter A*** has declared himself as the responsible party for the relevant website and the relevant image processing and is, based on his submissions, also the one,

****1. Decision on the Purposes and Means of the Subject Image Processing in accordance with Art. 4 No. 7 GDPR****

In accordance with Art. 5 para. 1 lit. a GDPR, which is expressly declared applicable under § 9 para. 2 DSG, any data processing must be carried out lawfully, in good faith, and in a manner that is comprehensible to the data subject (principle of lawfulness, processing in good faith, transparency).

Consequently, every data processing must be based on a legal basis, whereby in the present case Art. 13 EU-GRC in conjunction with Art. 85 para. 2 GDPR in conjunction with § 9 para. 2 DSG is to be considered.

****2. On the Balancing of Interests in General****

Even pictorial or photographic representations of a living, identifiable natural person are personal data (cf. OGH 27.11.2019, 6 Ob 150/19 f).

Since the faces of the affected individuals are clearly visible in the photos, the affected individuals are identifiable, and thus it constitutes personal data in the sense of Art. 4 No. 1 GDPR.

According to the case law of the OGH, which can be used as a guideline in the present case, the right

to one's own image represents a special form of the general right of personality. Therefore, the mere creation of a likeness without the consent of the depicted individual can already constitute an unlawful infringement of their general right of personality. The general right of personality of the affected individual is not only violated when images of a person are taken in their private sphere to make them accessible to the public. Rather, the creation of likenesses of a person in publicly accessible areas, even without the intention of distribution, can also represent an unlawful infringement of the personality rights of the affected individual. The photographic capture of a specific activity or situation can be perceived as unpleasant by the depicted individual and can hinder their free development of personality. This is particularly true in light of the dissemination and manipulation possibilities offered by modern (digital) technology, as the person being photographed can never know in advance how the photographer will subsequently use the recording (OGH 27.02.2013, 6 Ob 256/12h with references).

Image processing by private individuals in public spaces is only possible under certain conditions (cf. VwSlg. 19.440 A/2016 regarding the legal situation under the DSG 2000, whereby the statements in para. 25 of this decision are also applicable to the legal situation under the GDPR and the DSG).

****In the Tension Between Artistic Freedom and General Personality Rights in Street Photography****

Artistic freedom must exceptionally yield to general personality rights when the personality rights of the affected individual are severely impaired (cf. German BVerfG 13.6.2007, 1 BvR 1783/05).

Applied to the present case, the following arises:

4. ****Regarding the Balancing of Interests in the Present Case****

4.a. ****Regarding the Children****

In the present balancing of interests, it must be considered that some of the photos also involve (minor) children, and children as vulnerable individuals are particularly worthy of protection (see Recital 38 GDPR).

The age of the affected children in the relevant photos (see e.g., photos C.2. and C.3. of the factual findings) cannot be determined. However, based on the photos, it can be assumed that they are children under the age of 14 or 16 years.

Although the term "child" is not defined in the legal definitions of Art. 4 GDPR, it is directly derived from Art. 8 para. 1 GDPR that it refers to a person up to an age between thirteen and sixteen years. The GDPR assumes an age limit of sixteen years; however, member states have the option, due to an optional opening clause, to provide for a lower age limit up to the completion of the thirteenth year of life. The Austrian legislator has made use of this option and set the age limit in § 4 para. 4 DSG at the completion of the 14th year of life. This corresponds to the distinction between mature and immature minors as regulated in § 21 in conjunction with § 170 para. 1 ABGB.

"Another important element of the principle of processing in good faith is connected to the balance of power, as the principle of processing in good faith according to Art. 5 para. 1 lit. a GDPR underpins the entire data protection framework and aims to eliminate power asymmetries between the data controllers and the affected individuals, in order to compensate for the negative effects of such asymmetries and to ensure the effective exercise of the rights of the affected individuals.

Children deserve special protection regarding their personal data, as they may be less aware of the risks, consequences, and guarantees involved, as well as their rights concerning data processing. Recital 75 GDPR explicitly lists the processing of personal data, particularly of children, as situations in which a risk to fundamental rights and freedoms may arise with varying probabilities and severity from data processing, which could lead to physical, material, or immaterial harm.

In this sense, children can be considered particularly "vulnerable" affected individuals, as it can be assumed that they are not capable of knowingly and thoughtfully opposing or consenting to the processing of their personal data" (cf. EDSA, Binding Decision 2/2023 on the dispute submitted by the Irish SA regarding TikTok Technology Limited (Art. 65 GDPR), August 2, 2023, para. 107).

4.b. ****Regarding C.4. of the Factual Representations, Photo of Female Cleavage or Breast Base, "P*** 2017"*****

As established, the relevant photo is taken from above in such a way that a large part of the cleavage or part of the breast of the affected first women, as well as the base of their bras, is visible. A large part

of the cleavage/breast of the second woman is also visible.

Even though this is not a "nude photo" (see OGH 17.09.1996, 4 Ob 2249/96f), there is still a significant infringement of the right to data protection of the affected individuals (depiction of one's own person), as they are shown in a position that approaches exposure.

Moreover, the legislator has made an assessment that criminalizes unwanted photographic recordings of female body parts – under the appropriate conditions – (§ 120a para. 1 StGB).

Although the present case does not involve the entire female breast or nude photos, it can be inferred from the explanations regarding § 120a StGB that it is a concern of the legislator to legally protect women from unwanted (photo) recordings, which include even parts of the breast as well as the base of their bras ("covering underwear").

Thus, such photos are also subject to a higher level of protection and therefore to an increased interest of the affected individuals that their image is not processed and, in particular, not published without their consent.

4.c. **Regarding Art. 9 GDPR (Religious Beliefs)**

As noted under C.2.a, the photo clearly reveals the religious beliefs of the two depicted individuals (Jewish faith based on their appearance).

According to Art. 9 para. 1 GDPR – which, in the present case, does not apply according to § 9 para. 2 DSG, but can be used as a guideline for the balancing of interests – the processing of personal data revealing, among other things, religious or philosophical beliefs is prohibited.

In its judgment of August 1, 2022, C-184/20, the CJEU ruled that the scope of application of Art. 9 para. 1 GDPR (processing of special categories of personal data) is to be interpreted broadly.

Accordingly, the scope of the provision is already opened if these data categories can be derived indirectly from the information.

Thus, these photos are also subject to a higher level of protection and therefore to an increased interest of the affected individuals that their image is not processed and, in particular, not published without their consent, especially since individuals of the Jewish faith may be exposed to heightened threats.

4.d. Regarding the image according to point C.5

The affected individuals were captured (as described in C.5 of the factual representations) during a meal in a situation of "letting themselves go outside the obligations of work and everyday life."

The EDSA is of the opinion that affected individuals can assume that they are not being monitored in publicly accessible areas, especially when these areas are typically used for recreation, relaxation, and leisure activities, as well as in places where individuals gather and/or communicate, such as seating areas, tables in restaurants, parks, cinemas, and fitness facilities. Here, the interests or rights and freedoms of the affected individual often outweigh the legitimate interests of the responsible party (cf. EDSA, Guidelines 3/2019 on the processing of personal data by video devices, para. 38).

Therefore, this photo is also subject to a higher level of protection and thus to an increased interest of the affected individuals that their image is not processed and, in particular, not published without their consent.

5. Conclusion

In summary, particularly regarding

- children,
- the depiction of female body parts in an exposed manner,
- religious beliefs, and
- photographing during meals,

the interests of the affected individuals outweigh the legitimate interests of the artistic freedom of the responsible party.

As pointed out with reference to the case law of the OGH, the mere creation of a likeness without the consent of the depicted individual can already constitute an unlawful infringement of their general personality rights.

The Data Protection Authority does not overlook that obtaining consent prior to the creation of the

image would largely make the art form of street photography impossible, as it primarily relies on spontaneity and the fact that the depicted individuals are photographed unnoticed.

Nevertheless, it would have been reasonable for the responsible party to obtain at least retrospective consent in these cases, which would undoubtedly have strengthened the legal basis for data processing based on artistic freedom.

However, if the processing step of creating the likeness is already unlawful, this must all the more apply to the subsequent publication of the images, which constitutes a separate processing step.

Therefore, the responsible party was instructed in accordance with Art. 58 para. 2 lit. g GDPR to delete the aforementioned photos within a period of two weeks.

The deadline is appropriate and proportionate.